

Wali Mohd. @ Wali Ahmad v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 February 2025 · 2025:AHC:23706-DB · WRIT - C No. 704 of 2025 · **Writ disposed of; petitioner relegated to Clause 6.5 with two-month stay of coercive action.**

HEADNOTE

A consumer disputing an electricity demand is relegated to the Clause 6.5 authority under the U.P. Electricity Supply Code, 2005. If the petitioner approaches that authority within one week, the grievance is to be considered within one month; coercive action on the demand notice is stayed for two months.

FACTUAL SUMMARY

Wali Mohd. challenged a demand notice dated 9 October 2024 issued by Paschimanchal Vidyut Vitran Nigam Limited for electricity charges unpaid against bills generated by the department. He contended that the bills had been wrongly raised. Counsel for the licensee submitted that a consumer aggrieved by an electricity bill should approach the concerned authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A consumer who disputes an electricity bill is to approach the authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction that if the petitioner approaches that authority within one week, the grievance shall be looked into within one month, and no coercive action shall be taken on the demand notice dated 9 October 2024 for two months. ¶ 4-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing an electricity demand is relegated to the Clause 6.5 authority under the U.P. Electricity Supply Code, 2005. If the petitioner approaches that authority within one week, the grievance is to be considered within one month; coercive action on the demand notice is stayed for two months. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS WERE WRONGLY RAISED

Left to the Clause 6.5 authority. ¶ 2,4